

26STCV12002 26STCV12002

County: los-angeles

Division: Civil Law and Motion

Department: 407

Hearing date: 2026-09-16

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Case Number: 26STCV12002 Hearing Date: September 16, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: September

16, 2026 TRIAL DATE: Not set

CASE: James Townsend v. City of Los Angeles

CASE NO.: 26STCV12002

DEFENDANT

CITY OF LOS ANGELES'S DEMURRER TO PLAINTIFF JAMES TOWNSEND'S FIRST AMENDED
COMPLAINT

MOVING

PARTY: Defendant City of Los Angeles

RESPONDING

PARTY: Plaintiff James Townsend

Plaintiff

James Townsend ("Townsend" or "Plaintiff") was employed by defendant City of Los Angeles ("City" or "Defendant") as a Commanding Officer of the Mission Area in the Los Angeles Police Department ("LAPD").

In 2024, Townsend was terminated following an investigation finding he had ordered the removal of photos which had evidentiary value to Internal Affairs. Townsend alleges that the City

retaliated against him because the City believed Townsend might disclose criminal misconduct by police officers or severe instances of noncompliance with LAPD policy, for engaging in the protected activity of supporting and advancing internal exposure of unlawful “ghost stop” practices within the Mission Gang Enforcement Detail and challenging the evidentiary basis of the LAPD’s allegations into Townsend’s conduct.

I. INTRODUCTION

On

April 15, 2026, Plaintiff filed a Complaint against Defendant for whistleblower protection, intentional infliction of emotional distress, and defamation.

On July 20,

2026, Defendant filed this demurrer to the second and third causes of action.

On September

2, 2026, Plaintiff filed an opposition.

On

September 9, 2026, Defendant filed a reply.

II. LEGAL STANDARD

A demurrer for sufficiency tests

whether the complaint states a cause of action. (Hahn v. Mirda (2007)

147 Cal.App.4th 740, 747.) When considering demurrers, courts read the

allegations liberally and in context, accepting the alleged facts as true. (Nolte

v. Cedars-Sinai Medical Center (2015) 236 Cal.App.4th 1401, 1406.)

“Because a demurrer challenges defects on the face of the complaint, it can

only refer to matters outside the pleading that are subject to judicial

notice.” (Arce ex rel. Arce v. Kaiser Found. Health Plan, Inc. (2010)

181 Cal.App.4th 471, 556.)

III. DISCUSSION

A. Second Cause of Action for Intentional Infliction of Emotional Distress

Plaintiff

concedes he cannot maintain this cause of action against City. (See Opp., pp. 2:18, 6:14-15; see also Gov. Code, § 815.3(a).) Accordingly, the demurrer to the second cause of action is SUSTAINED WITHOUT LEAVE TO AMEND.

B. Third Cause of Action for Defamation

City argues

the defamation claim fails because (1) it is not grounded on a statute; (2) it is barred by litigation and official proceeding privileges; (3) it is barred by the statute of limitations. Each of these arguments are meritorious.

First,

Government Code section 815 states, in relevant part:

“Except as otherwise provided by statute: (a) A public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person.” The Legislative Committee Comment to Section 815 states: “This section abolishes all common law or judicially declared forms of liability for public entities....” (Legis. Com. com., 32 West’s Ann. Gov. Code (1995), foll. § 815, p. 167.) Here, the Complaint does not identify a statutory basis to support his defamation claim.

Second, the litigation privilege, codified at Civil Code section 47,

“bars a civil action for damages for communications made ‘[i]n any ... (2) judicial proceeding, (3) in any other official proceeding authorized by law, or (4) in the initiation or course of any other proceeding authorized by law and reviewable pursuant to [statutes governing writs of mandate]’” (Civ. Code, § 47(b).) An internal investigation is an “official proceeding authorized by law.” (Jeffra v. California State Lottery (2019) 39 Cal.App.5th 471, 482; Laker v. Board of Trustees of California State University (2019) 32 Cal.App.5th 745, 770 [“The ‘official proceeding’ privilege has been interpreted broadly to protect communication to or from governmental officials which may precede the initiation of formal proceedings.”]; Green v. Cortez (1984) 151 Cal.App.3d 1068, 1073 [“police investigation” into alleged misconduct by a police officer is an “official proceeding authorized by law”]).

Here, Plaintiff’s defamation claim is premised upon the dissemination within the LAPD of the allegedly false statement that Plaintiff knowingly ordered the removal of items with potential evidentiary value. (Complaint, ¶ 62.) Critically, the statements were made during and in connection to an internal personnel investigation. (Complaint, ¶¶ 61-68.)

Accordingly, the demurrer to the third cause of action is SUSTAINED
WITH LEAVE TO AMEND.

IV. CONCLUSION

The demurrers are Sustained.

Leave to amend is Granted as to the third cause of action only.

Plaintiff

is ordered to serve and file the First Amended Cross-Complaint within 15 days
of this order.

Moving party to give notice.

Dated: September 11,
2026

Brock T. Hammond

Judge of the Superior Court